



POLICE DEPARTMENT

July 11, 2023

-----X
In the Matter of the Charges and Specifications :

- against - :

Police Officer Angel Lopez :

Tax Registry No. 958827 :

47 Precinct :

Case No.

2019-20843

-----X
At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Paul M. Gamble
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB-APU: Brian Arthur, Esq.
Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

For the Respondent: Michael Martinez, Esq.
Worth, Longworth & London, LLP
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To:

HONORABLE EDWARD A. CABAN
ACTING POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

1. Police Officer Angel Lopez, on or about December 31, 2018, at approximately 0100 hours, while assigned to the 47 Precinct and on duty, in the vicinity of 236th Street, between Furman Avenue and White Plains Road, and the 47 Precinct stationhouse, Bronx County, abused his authority as a member of the New York City Police Department, in that he strip-searched § 87(2)(b) § 87(2)(b) without sufficient legal authority.

P.G. 208-05, Page 3, Paragraph C (1)

ARRESTS – GENERAL
SEARCH GUIDELINES

2. Police Officer Angel Lopez, on or about December 31, 2018, at approximately 0100 hours, while assigned to the 47 Precinct and on duty, in the vicinity of 236th Street, between Furman Avenue and White Plains Road, and the 47 Precinct stationhouse, Bronx County, abused his authority as a member of the New York City Police Department, in that he improperly conducted a strip-search of § 87(2)(b) § 87(2)(b) without police necessity.

P.G. 208-05, Page 4, Paragraph C (4)

ARRESTS – GENERAL
SEARCH GUIDELINES

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on June 1, 2023.

Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. The CCRB called offered the hearsay statement of § 87(2)(b) § 87(2)(b) in evidence; Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all the evidence in this matter, the Tribunal finds Respondent Not Guilty of the charged misconduct.

ANALYSIS

The following is a summary of the facts which are not in dispute. On December 31, 2018, Respondent performed Anti-Crime duties in the 47 Precinct (T. 25-26). At approximately 0100 hours, Respondent and his partner conducted a car stop of a vehicle operated by § 87(2)(b)

§ 87(2)(b) (T. 26-27; CCRB Ex. 2A at 3-4). After the stop, § 87(2)(b) was placed under arrest¹ (T. 27; *Id.* at 4). Respondent transported § 87(2)(b) to the 47 Precinct, where he conducted an inventory search of § 87(2)(b) property in front of the precinct desk (T. 27-28). After the search, § 87(2)(b) was brought to the holding cell area, where Respondent conducted another search before placing him in a holding cell (T. 28).

Respondent directed § 87(2)(b) to remove his coat, shirt, and a ballistic vest from his torso; a quantity of marihuana fell from the vest as § 87(2)(b) took it off (T. 29; CCRB Ex. 2A at 5-6, 28). Respondent then directed § 87(2)(b) to roll down his socks and remove his shoes (T. 30; CCRB Ex. 2A at 5, 29). After Respondent searched § 87(2)(b) shoes, he directed him to remove his socks; a search of the socks resulted in the seizure of seven pieces of crack cocaine (T. 31; CCRB Ex. 2A at 6, 31). Respondent then continued to search § 87(2)(b) clothing; the justification for, manner of, and conduct of this portion of the search is disputed.

During the search procedures described above, § 87(2)(b) was in sight of two to three male detainees inside the holding cell (T. 43; CCRB Ex. 2A at 5, 24-25).

The following is a summary of the relevant evidence presented at the trial.

Body-Worn Camera Video

CCRB's Exhibit 1 in evidence is a recording obtained from Respondent's Body-Worn Camera. The entire recording is 24 minutes and 29 seconds long, but the portion concerning Respondent's interaction with § 87(2)(b) in the holding cell area is six minutes. The relevant part of the recording is summarized below:

21:52-22:06 § 87(2)(b) has both arms up and palms pressed against the wall. Respondent pats § 87(2)(b) legs over the jeans he is wearing.

¹ The bases for the vehicle stop, consent search, and arrest are not disputed.

- 22:07-22:17 § 87(2)(b) turns around to face Respondent, his back facing the wall. Respondent tells § 87(2)(b) "Let me see if you have pockets in the shorts." § 87(2)(b) appears to be unbuttoning his jeans and pulling his jeans down.
- 22:18-22:20 Respondent pats § 87(2)(b) near the pocket area of his pants; his jeans are off his waist. § 87(2)(b) appears to be wearing a blue plaid clothing item under the black long johns he had under his jeans. Respondent asks, "Long johns?" § 87(2)(b) responds, "Yeah."
- 22:22-22:38 In response to Respondent's statement, § 87(2)(b) pulls down his long johns and exposes his underwear. Respondent then tells § 87(2)(b) "All right; have a seat," before asking him to take off his socks.
- 22:39-23:32 § 87(2)(b) jeans are on his body, and covering his legs, while seated on the bench taking his socks off. The officers check his socks before giving them back to § 87(2)(b).
- 23:33-23:34 § 87(2)(b) begins to speak to Respondent and his partner, but what he says is inaudible. Respondent tells § 87(2)(b) "Stand up . . . pants." § 87(2)(b) lower body is off-camera. § 87(2)(b) leans over and reaches down toward his pants.
- 23:38-24:00 Respondent states to § 87(2)(b) "All right, you can pull the long johns up. No, pull the long johns up, yeah." He then instructs § 87(2)(b) to put his hands on the wall again. Respondent begins to pat down § 87(2)(b) legs. It appears his jeans are pushed down on his lower body so the waistband is closer to § 87(2)(b) knees, and the black long johns are pulled up, covering the blue plaid third layer § 87(2)(b) was wearing.

Respondent's Testimony

Respondent testified that once he recovered cocaine from § 87(2)(b) socks, he was concerned about whether the "long johns or shorts" § 87(2)(b) had on underneath his pants contained any other contraband or a weapon (T. 31). He asked § 87(2)(b) "Do you have any pockets?" (T. 32)². When Respondent made that statement, he was aware that § 87(2)(b) was wearing three layers of clothing on his bottom half; he was unaware of what the second layer was (T. 34, 49).

² CCRB's Exhibit 1 shows that Respondent told § 87(2)(b) "Let me see if you have pockets in your shorts . . . Long johns?" (CCRB Ex. 1 at 22:18-22:20).

According to Respondent, he then said, "Pants," which referred to "the outer layer to make sure that there wasn't [sic] any pockets there or any other contraband or anything that could be hidden underneath the long johns that I couldn't feel from the jeans" (T. 32).

Respondent testified that § 87(2)(b) then lowered his jeans and his long johns, stating, "... I didn't tell him to. He did it of his own free will" (*Id.*). Respondent then told § 87(2)(b) to "pull them back up" and denied ever directing § 87(2)(b) to pull down his long johns (*Id.*).

On cross-examination, Respondent acknowledged that according to the Patrol Guide, a strip search is any search where an individual's underwear is exposed; he denied directing § 87(2)(b) to reveal his underwear and testified that § 87(2)(b) did so "on his own free will" (T. 36-37). He further acknowledged that a strip search that followed the Patrol Guide required prior authorization from his sergeant before taking a suspect into a bathroom (T. 37-38, 42). Respondent conceded that he did not seek approval from a supervisor before conducting the procedure in the holding cell area (T. 43). He also conceded that the search he conducted was performed in the view of other detainees in the holding cell area (T. 43-44).

§ 87(2)(b) *Statement*

In his hearsay statement, § 87(2)(b) asserted that Respondent made him "take off my bulletproof vest and starts to undress me in front of the [other] prisoners. He doesn't take me to a bathroom to undress me. He puts me right in front of the prisoners and makes me undress. While I was undressing, a bag of marihuana fell out of my sleeve. Then he goes, take off your socks halfway. I take off my sock halfway and take off the other sock halfway, nothing. And he says, take them off all the way. This is in front of the prisoners. He doesn't take me -- this is all right there in front of the prisoners, doesn't take me in a bathroom. And then he makes me take

my pants, a little bit down halfway off, and that's when everything unfolded from there" (CCRB Ex. 2A at 4-5).

After he acknowledged that Respondent recovered cocaine from one of his socks, § 87(2)(b) claimed Respondent "then told me to take down my pants halfway," then told him, "slightly pull them up" (*Id.* at 7). When the investigator asked § 87(2)(b) whether it was his underwear he was slightly pulling down, § 87(2)(b) responded, "Slightly, slightly, but then he told me to stop" (*Id.* at 7-8). The investigator asked § 87(2)(b) "So how far did you go down?" § 87(2)(b) answered, "Just, just like a little bit off my waist. A little bit off my waist, slightly off my waist" (*Id.* at 8).

When the investigator asked § 87(2)(b) what sort of direction Respondent gave about his underwear, § 87(2)(b) responded, "When, when I took my pants halfway, he said, alright, pull – then I had on my thermals under. He said, pull those. I pulled those. He said, cool. Then I had on my boxers, and I wanted to pull those slightly, and he said, no, that's it, stop and go up. Don't do that no more" (*Id.* at 33). § 87(2)(b) denied that Respondent patted him down when his pants and long johns had been lowered, stating, "No, he didn't, he didn't violate my area. No" (*Id.* at 34).

Credibility

Based upon the totality of the record, Respondent's testimony was logical and forthright and corroborated by the video from his Body-Worn Camera. His concession to being knowledgeable about the basis for a permissible strip search and the manner of obtaining the authorization to perform one is a factor weighing in favor of his veracity. Having had the opportunity to observe his demeanor as he testified during the hearing, I find the substance of his testimony and the manner in which it was delivered consistent with a desire to be candid with the Tribunal. Finally, although he is an interested witness in this proceeding, any concern about the

possibility of tailoring his testimony was alleviated by the corroboration of the factual assertions he made under oath by the Body-Worn Camera recording of his interaction with § 87(2)(b)

In contrast, § 87(2)(b) § 87(2)(b) is an unreliable narrator of the events of December 31, 2018, as they pertain to an alleged strip search. First, several factual assertions he made about statements Respondent purportedly made during their interaction were not supported by the video recording of the event. Second, the directives he attributed to Respondent, to lower his pants “halfway” and then to, “slightly pull them up,” seem calculated to portray Respondent in a position of compelling § 87(2)(b) to comply, while simultaneously equivocating over his characterization of the compulsory nature of Respondent’s purported commands. Third, § 87(2)(b) accusation focused almost immediately on the public nature of the purported strip search, suggesting the prospect of being stripped in public may have been a significant factor motivating his complaint, to the point that he leveled an accusation of a strip search that never came to pass. In his own words, he denied that Respondent had “violated his ‘area.’”

Finally, the bulk of § 87(2)(b) statement concerned his unsubstantiated accusations that Respondent had stopped him without cause, had engaged in a pattern of harassment, and was unjustifiably attempting to charge § 87(2)(b) with felonies. These accusations are more accurately characterized as recriminations, given that Respondent’s discovery that § 87(2)(b) possessed marihuana and cocaine led to him being criminally charged. This is clear evidence of bias on his part, further undermining his veracity.

Based upon the foregoing, I find that § 87(2)(b) claims regarding Respondent’s professed misconduct are dubious.

Specification 1: Strip Search without Sufficient Legal Authority.

I find that CCRB has failed to meet its burden of proof by a preponderance of the relevant, credible evidence that Respondent performed a strip search without sufficient legal authority.

Patrol Guide procedure 208-05(C)(1) states:

“A strip search is any search in which an individual’s undergarments (e.g., bra, underwear, etc.) and/or private areas are exposed or in which an individual’s clothing is removed, lifted up, or pulled down to expose undergarments or private areas.” Strip searches “may only be conducted with the knowledge and approval of the arresting officer’s immediate supervisor or the borough Court Section supervisor.”

It is not in dispute that Respondent did not seek authorization from a supervisor to search § 87(2)(b) before he brought him to the holding cell area or that there were other detainees present in that area who were in a position to witness § 87(2)(b) being searched. Nevertheless, I find that no search meeting the definition of “strip search” found in Patrol Guide procedure 208-05(C)(1) was performed.

Respondent testified credibly that he was aware of the procedures for conducting a strip search and the authorization he would need before conducting one. His denial that he conducted a strip search is supported by his Body-Worn Camera recording, which is the best evidence of the procedure he performed.

The credible, relevant evidence supports a finding that when Respondent told § 87(2)(b) “Let me see if you have pockets in your shorts,” § 87(2)(b) took down his jeans, exposing his long johns and a pair of boxer shorts he had on underneath the long johns. I do not find that Respondent’s statement was equivalent to a directive to § 87(2)(b) to expose his underwear, nor would it have been reasonable for § 87(2)(b) to interpret it that way. A review of the video evidence and Respondent’s credible testimony supports a finding that § 87(2)(b) lowered his jeans and long johns on his own volition. § 87(2)(b) claims that Respondent directed him to “take [his] pants down halfway” and to,

“slightly pull them up” were contradicted by the video evidence of the interaction and are incredible.

In previous cases, this Tribunal has declined to find misconduct where suspects have been found to expose their underwear on their own initiative rather than at the direction of respondents (*Disciplinary Case Nos.* 2020-21892, 2020-21893, 2020-21894 [May 26, 2023]).

Based upon the foregoing, I find Respondent Not Guilty of Specification 1.

Specification 2: Strip Search Without Police Necessity

I find that CCRB has failed to meet its burden of proof by a preponderance of the relevant, credible evidence that Respondent performed a strip search without police necessity.

As outlined in the analysis of Specification 1 above, I have found that Respondent did not perform a strip search of § 87(2)(b) in violation of Patrol Guide procedure 208-05(C)(1). With respect to the search which was performed, Patrol Guide procedure 208-05(B)(2) is instructive:

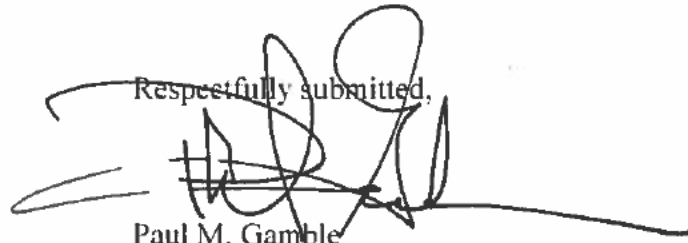
“A search at a police facility, which is not the same as a ‘strip search,’ includes the removal of outer garments (e.g., overcoats, jackets, sweaters, vests, hats, wigs, ties, belts, shoelaces, drawstrings, shoes, socks, handbags, wallets, etc.). All pockets are to be emptied, and all clothing not removed will be examined by grabbing, crushing, and squeezing the garments and by sliding the hands across the body to detect articles that may be underneath or sewn to the clothing.”

Persons detained in holding cells are in the care of this Department; as such, Members of Service owe them a duty to provide for their safety and well-being. As part of that responsibility, it is imperative that Members of the Service ensure that detainees do not bring any potentially dangerous items into a holding cell that can harm themselves, other detainees, or police officers. The dangers of weapons or controlled substances in a holding facility are manifest.

Based upon the credible evidence in the record, Respondent performed a search of § 87(2)(b) clothing and person, which comported with the letter of Patrol Guide procedure 208-05(B)(2). Providentially, Respondent's search discovered a quantity of marihuana and seven pieces of crack cocaine on § 87(2)(b) person before he was placed into a holding cell.

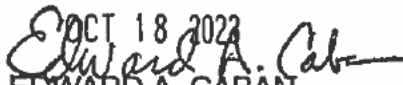
Based upon the foregoing, I find Respondent Not Guilty of Specification 2.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "Paul M. Gamble", is written over the typed name and title.

Paul M. Gamble
Assistant Deputy Commissioner Trials

APPROVED

OCT 18 2022

EDWARD A. CABAN
POLICE COMMISSIONER



ERIC L. ADAMS
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ARVA RICE
INTERIM CHAIR

Honorable Edward Caban
Interim Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

July 6, 2023

Re: PO Angel Lopez

Disciplinary Case No. 2019-20843

Interim Commissioner Caban:

The above-referenced case was tried on June 1, 2023, by the undersigned, for the New York City Civilian Complaint Review Board (hereinafter “CCRB”), and pursuant to the Memorandum of Understanding between CCRB and the New York City Police Department.

Respondent, Police Officer Angel Lopez, was charged with the following:

1. Police Officer Angel Lopez, on or about December 31, 2018, at approximately 0100, while assigned to 047 PCT and on duty, in the vicinity of 236th Street, between Furman Avenue and White Plains Road; and the 47th Precinct stationhouse, Bronx County, abused his authority as a member of the New York City Police Department, in that he strip-searched § 87(2)(b) without sufficient legal authority.
PG 208-05, page 2, paragraph C(1) ARRESTS - GENERAL SEARCH GUIDELINES

2. Police Officer Angel Lopez, on or about December 31, 2018, at approximately 0100, while assigned to 047 PCT and on duty, in the vicinity of 236th Street, between Furman Avenue and White Plains Road; and the 47th Precinct stationhouse, Bronx County, abused his authority as a member of the New York City Police Department, in that he improperly conducted a strip-search of § 87(2)(b) without police necessity.
PG 208-05, page 3, paragraph C(4) ARRESTS – GENERAL SEARCH GUIDELINES

CCRB has reviewed the June 26, 2023, draft decision of Assistant Deputy Commissioner - Trials Paul M. Gamble (hereinafter, “ADCT”). We respectfully submit the following comments regarding the draft decision pursuant to *Fogel v. Board of Education*, 48 A.D.2d 925

(2d Dept. 1975).

The Court found Respondent Lopez not guilty of specifications One (1) and Two (2). It is respectfully requested that you reject ADCT Gamble's findings, find the Respondent guilty of Specifications One (1) and Two (2) and accept CCRB's recommended penalty of the forfeiture of Five (5) vacation days.

SUMMARY OF THE RELEVANT EVIDENCE AT TRIAL

Exhibits

CCRB Exhibit's

1. PO Lopez's Body Worn Camera (BWC #1 PO Lopez)
2. CCRB interview of § 87(2)(b) § 87(2)(b) CCRB Interview 1.16.19)
- 2 (a). Transcript of CCRB interview of § 87(2)(b)

Respondent's Exhibits

None

Body Worn Camera

CCRB Exhibit 1, Officer Lopez's Body Worn Camera (BWC), captured the stop, arrest and processing of § 87(2)(b) by Officer Lopez and his fellow officers on December 31, 2018. During the search of § 87(2)(b) in the 47th Precinct, the BWC captured Officer Lopez stating to § 87(2)(b) "Let me see if you have pockets in the shorts." (CCRB Ex. 1, 22.05-22.11). The BWC also demonstrated that the search of § 87(2)(b) took place in the presence of three other civilians (CCRB Ex. 1. 19.01-19.30, 24.00-24.15).

Testimony

Officer Angel Lopez

Officer Lopez testified that on December 31, 2018, he stopped a vehicle being driven by § 87(2)(b). He ran § 87(2)(b) license and discovered that it was suspended (Transcript 26). § 87(2)(b) was arrested and transported to the 47th Precinct, where a search was conducted of § 87(2)(b) (Transcript 27). During this search, Officer Lopez recovered a bag of marijuana and seven bags of crack cocaine on § 87(2)(b) person (Transcript 29-31).

Officer Lopez testified that § 87(2)(b) was wearing three layers of clothing – jeans, long johns underneath the jeans, and boxers or shorts underneath the long johns (Transcript 34). He acknowledged that at one point in the search of § 87(2)(b) he told § 87(2)(b) "Let me see if you have pockets in the shorts." (Transcript 35). He also acknowledged that after he said this, § 87(2)(b)

§ 87(2)(b) showed him his shorts (Transcript 36). Although Officer Lopez stated that § 87(2)(b) showed him his shorts “on his own free will”, (Transcript 37), he admitted that § 87(2)(b) showed him his shorts only after he had told § 87(2)(b) that he needed to see if his shorts had pockets (Transcript 37). Officer Lopez also admitted that, at the time he told § 87(2)(b) that he needed to see if his shorts had pockets, he knew that § 87(2)(b) had three layers of clothing, and that the innermost layer of clothing were boxers or shorts (Transcript 49-50). Officer Lopez testified that, when he gave the order to § 87(2)(b) he was referring to the middle layer of clothing that § 87(2)(b) was wearing (Transcript 47).

Officer Lopez also testified that he knew that the definition of a strip search includes situations where an individual’s underwear is exposed (Transcript 38), that he knew that he had to receive permission from a supervisor before conducting a strip search (Transcript 42), and that strip searches should be carried out in the utmost privacy (Transcript 43). He also testified that he did not seek or receive permission from a supervisor before carrying out the search of § 87(2)(b) (Transcript 42), and also testified that the search of § 87(2)(b) was carried out in front of three other civilians (Transcript 43).

RESPONDENT IS GUILTY OF SPECIFICATIONS ONE AND TWO

We disagree with the Tribunal’s finding that, during Officer Lopez’s search of § 87(2)(b) no search meeting the definition of a strip search took place (Tribunal Decision 9). We further disagree with the Tribunal’s finding that it was not reasonable for § 87(2)(b) to interpret Officer Lopez’s order, “Let me see if you have pockets in your shorts,” as an order to show Officer § 87(2)(b) the shorts that he was wearing (Tribunal Decision 9).

PG 208-05, paragraph C(1), defines what constitutes a strip search. This definition includes any search in which an individual’s underwear is exposed. It is clear from both the Body Worn Camera and from Officer Lopez’s testimony that during the search § 87(2)(b) underwear, the shorts that constituted the innermost layer of his clothing, were exposed (Transcript 36). It is also clear that this exposure occurred immediately after Officer Lopez gave the order to § 87(2)(b) “Let me see if you have pockets in the shorts.” (Transcript 35-36). Given that he was only wearing one pair of shorts, how else could § 87(2)(b) have interpreted this other than an order to show Officer Lopez those shorts? Officer Lopez’s claim that when he stated, “Let me see if you have pockets in the shorts,” he was referring to the middle layer that § 87(2)(b) was wearing, is simply not credible. Firstly, Officer Lopez acknowledged that, when he made the statement, he knew that § 87(2)(b) innermost layer of clothing were shorts (Transcript 49-50). Secondly, the middle layer of § 87(2)(b) clothing was not shorts, but long johns (Transcript 34).

Furthermore, even if it had been Officer Lopez’s intention for § 87(2)(b) to only expose the middle layer of his clothing, how could § 87(2)(b) have known this? How else could § 87(2)(b) (or anyone in his position) have interpreted the order to show “your shorts” other than as an order to show Officer Lopez the only “shorts” he was wearing? We strongly disagree with the Tribunal’s opinion that § 87(2)(b) exposed his underwear on his “own initiative.” (Tribunal Decision 9). In short, he was ordered to expose his shorts, so he exposed his shorts.

While Officer Lopez would have been justified in seeking approval for a strip search of § 87(2)(b) given the discovery of controlled substances within his clothing, it is clear from the evidence at trial that Officer Lopez violated Patrol Guide directives on the correct procedure to follow in conducting a strip search. PG 208-05, paragraph C(1) states that, before conducting a strip search, an officer must first seek and obtain approval from a supervisor for the strip search.

Officer Lopez admitted that he sought no such approval in this case (Transcript 42). Therefore, the evidence at trial proved by a preponderance that Officer Lopez is Guilty of Specification One. PG 208-05, paragraph C(4) states that strip searches should be conducted in the utmost privacy. The strip search of § 87(2)(b) took place in front of three civilians (Transcript 43; CCRB Exhibit 1). Therefore, the evidence at trial proved by a preponderance that Officer Lopez is guilty of Specification Two.

Based on the presented arguments above, CCRB respectfully requested that you reject ADCT Gamble's findings, find the Respondent guilty of Specifications One (1) and Two (2) and accept CCRB's recommended penalty of the forfeiture of Five (5) vacation days.

Respectfully submitted,

Brian Arthur

Brian Arthur, Esq.
APU Prosecutor
NYC Civilian Complaint Review Board

cc: Michael Martinez, Esq.
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